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BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **JEFFREY MACOMBER,** Secretary of CDCR, Respondent.	**Superior Court of California,** County of Sacramento **Case No. 26WM000028** **OPENING BRIEF IN SUPPORT OF PEREMPTORY WRIT OF MANDATE**

MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF PETITION FOR PEREMPTORY WRIT OF MANDATE

Filed by Petitioner Brendan Ngehsi Newanforbi, In Pro Per

February 9, 2026

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I. INTRODUCTION

This proceeding for a writ of mandate pursuant to Code of Civil Procedure section 1085 addresses an unlawful substitution of categorical criteria by the California Department of Corrections and Rehabilitation ("CDCR") in place of the individualized assessment framework established by the Legislature for parole discharge. Petitioner Brendan Ngehsi Newanforbi challenges the Department's reliance on unauthorized "underground regulations" that override the evidence-based assessment framework enacted by the California Legislature.[1]

At the heart of this action lies a conflict between bureaucratic expediency and statutory duty. The Legislature, through Penal Code section 3008(d)(2), explicitly designed a flexible, discretionary system for sex offender parole supervision, mandating that treatment program duration be determined by clinical professionals and the courts—with a range extending "not less than one year, up to the entire period of parole." This statutory language reflects a legislative intent to tailor supervision to the specific risks and progress of the individual parolee.

The Department, however, has effectively rewritten this statute through internal policy. By enforcing a rigid "10-year/6.5-year" time-served requirement under Policy 19-03 (Amended) and maintaining a de facto policy that treatment completion is structurally "impossible" prior to discharge, the Department has converted the Legislature's discretionary "up to" into a mandatory "always." This substitution of fixed departmental criteria for individualized statutory analysis constitutes both a failure to perform a ministerial duty and an abuse of discretion under California law.

This case also presents a failure to proceed in the manner required by law. Effective April 17, 2025, the Department promulgated new regulations—15 Cal. Code Regs. § 3574—that formally recognize the possibility of early treatment completion and require specific procedural safeguards, including written findings of "good cause" for retention, that were absent from the Petitioner's December 1, 2025 Discharge Review Report. The Department's continued enforcement of its legacy policies in direct contravention of its own new regulations is arbitrary, capricious, and legally unsustainable.

Critically, this Petition does not ask the Court to substitute its judgment for that of the agency regarding the ultimate outcome of discharge. Rather, it seeks to compel the agency to exercise its discretion within the lawful boundaries set by the Legislature—free from the constraints of ultra vires policies. The California Supreme Court addressed precisely this type of challenge in In re Gadlin (2020) 10 Cal.5th 915, holding that categorical exclusions from parole rights are impermissible when the governing law mandates individualized assessment. The same principle applies here with equal force.

[1] "The length of the program shall be . . . not less than one year, up to the entire period of parole." Pen. Code § 3008(d)(2).

II. STATEMENT OF THE CASE

A. Factual Background and Parole History

Petitioner Brendan Ngehsi Newanforbi (CDC #BF3571) was released on parole on December 2, 2020, following incarceration for violations of Penal Code section 289(a)(1)(A) (Penetration with Force/Violence) and section 220(a)(1) (Assault with Intent to Commit Specified Sex Offense). Upon release, he was subject to registration under Penal Code section 290 and assigned a 10-year parole term, with a controlling discharge date of December 2, 2030.

For the five years preceding the challenged decision, the Petitioner remained under continuous parole supervision. His performance on parole demonstrates a trajectory of stability and compliance that the statutory scheme was designed to recognize. As of December 2025, his classification was "Category SA," and his California Static Risk Assessment (CSRA) score was 2—indicating "low risk" for recidivism. The CSRA score of 2 places Petitioner in the lowest recidivism risk category, consistent with CDCR's own risk assessment protocols and supporting discharge under risk-based criteria in 15 CCR § 3574(f).

The administrative record reflects the following key indicators of rehabilitation and stability:

- **Residence Stability:** The Petitioner maintained a stable residence with family in Stockton for over eight months, satisfying the "Residence Stability" objective of the discharge review criteria.
- **Treatment Progress:** Despite significant systemic disruptions—including approximately seven different clinicians over the five-year parole period and admissions by clinicians that completed homework assignments were lost—the Petitioner has actively participated in the Sex Offender Management Program (SOMP), advancing to the Core Phase, Block 1, Module 4 of 7. These changes interfered with continuity of care and consistent progress tracking, yet the Petitioner demonstrated persistence and compliance through ongoing engagement.
- **Social Affiliation:** He demonstrated affiliation with pro-social individuals and avoided new criminal conduct throughout his parole term.
- **Supervision History:** While the record notes technical violations related to GPS charging and treatment attendance, the Department did not revoke parole based on these violations.

B. The Challenged Discharge Denial

On December 1, 2025, the Division of Adult Parole Operations (DAPO) issued a Discharge Review Report (CDCR Form 1502-DR) denying the Petitioner's consideration for early discharge. The denial was not based on a holistic evaluation of the Petitioner's low risk score or his five years of stability. Instead, the "Unit Supervisor Comments" explicitly relied on two categorical barriers:

- **The Time-Served Bar (Policy 19-03):** The report stated: "Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Newanforbi is not eligible for EDC at this time due to having a 10-year parole term. Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision."
- **The "Incomplete Treatment" Bar:** The report cited "incomplete sex offender treatment" as a concurrent basis for denial—referencing a standard that, as demonstrated below, renders completion structurally impossible before discharge.

Crucially, the report failed to incorporate the procedural requirements mandated by the Department's own regulations that became effective months earlier in April 2025. There was no "Form 3043" outlining good cause for retention, no evidence of a Containment Team Meeting finding, and no consultation with a certified sex offender management professional regarding the appropriate duration of the program.

C. The Regulatory Landscape: 15 CCR § 3574

To fully appreciate the illegality of the December 2025 denial, one must examine the regulatory context. Following litigation in Alliance for Constitutional Sex Offense Laws v. Macomber (Sacramento Super. Ct. Case No. 23STCP02378), the Department adopted 15 California Code of Regulations section 3574, effective April 17, 2025. These regulations were intended to bring the Department into compliance with Penal Code section 3008(d) by formalizing the "Containment Model" and explicitly acknowledging that treatment completion is not inextricably linked to the discharge date.

The following table illustrates the stark disconnect between the requirements of 15 CCR § 3574 and what actually appeared in the Petitioner's Discharge Review Report:

15 CCR § 3574 Requirement	Dec. 1, 2025 Report – Actual
Early completion permitted (§ 3574(d))	Denied on categorical "impossibility" policy
Written "good cause" finding required	Absent – only citation to Policy 19-03
CDCR Form 3043 required	No Form 3043 attached or referenced
Treatment provider signature required	No provider signature or input documented
Containment Team Meeting (CTM) required	No CTM documented or referenced
Risk-based retention criteria (§ 3574(f))	No risk scores cited; time-bar dispositive
30-day notice to parolee	No notice provision included

This table is not incidental to the Petition. It is the core of it. Every column on the right represents a failure by CDCR to follow its own binding regulations—regulations adopted less than eight months before the denial at issue.

III. STANDARD OF REVIEW

A. Writ of Mandate Under Code of Civil Procedure § 1085

A traditional writ of mandate under Code of Civil Procedure section 1085 is the appropriate vehicle to compel a public official to perform a ministerial duty or to correct an abuse of discretion. To obtain relief, the petitioner must demonstrate: (1) a clear, present, and usually ministerial duty on the part of the respondent; and (2) a clear, present, and beneficial right in the petitioner to the performance of that duty. California Ass'n for Health Services at Home v. Dep't of Health Care Services (2012) 204 Cal.App.4th 676, 683.

While the ultimate decision to discharge a parolee involves an exercise of discretion, the duty to apply the correct legal standard in making that decision is ministerial. Mandate lies where an agency exercises its discretion under an unlawful standard or substitutes unauthorized categorical rules for the individualized analysis required by statute. Pomona Police Officers' Ass'n v. City of Pomona (1997) 58 Cal.App.4th 578, 583–84.

B. Abuse of Discretion and the "Manner Required by Law"

An abuse of discretion is established not only when an agency's decision is unsupported by evidence, but also when the agency "has not proceeded in the manner required by law." Pomona Police Officers' Ass'n v. City of Pomona (1997) 58 Cal.App.4th 578, 583; AIDS Healthcare Foundation v. L.A. County Dept. of Public Health (2011) 197 Cal.App.4th 693; see also Topanga Ass'n for a Scenic Community v. County of Los Angeles (1974) 11 Cal.3d 506, 514. As the California Supreme Court held in Yamaha Corp. of America v. State Bd. of Equalization (1998) 19 Cal.4th 1, while agencies possess expertise in their domains, the judiciary retains the ultimate power to interpret statutes. When an agency's policy contradicts the plain text of a governing statute, the agency has abused its discretion, and the court must intervene to enforce the legislative will.

IV. ARGUMENT

A. Exhaustion of Administrative Remedies Is Excused

The Department will likely assert, as a threshold matter, that the Petitioner has failed to exhaust administrative remedies. This argument fails under three independently sufficient doctrines, each of which has been endorsed by the California Supreme Court.

1. The Futility Exception Applies.

The futility exception to the exhaustion requirement applies when the petitioner can "positively state what the administrative agency's decision in his particular case would be." In re Thompson (1985) 172 Cal.App.3d 256, 262. Here, no inference is required. The December 1, 2025 Discharge Review Report explicitly states the basis for denial: "Newanforbi is not eligible for EDC at this time due to having a 10-year parole term. Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision." This language reflects a fixed, statewide policy—not a case-specific exercise of discretion. Any Form 602 administrative appeal would be reviewed by the same agency enforcing the same categorical policy. It is futile to ask an agency to overturn its own "underground regulation" through a grievance process designed for individual factual disputes, not systemic policy challenges.

The factual predicate for this conclusion is not speculative. In In re Dwyer (San Mateo Super. Ct. Case No. SC-080355A/HC-3020, Order dated Mar. 20, 2023), CDCR officials testified under oath that sex offenders on parole cannot "complete" treatment before discharge. This sworn admission establishes CDCR's institutional position—a position that no internal grievance reviewer has the authority to override.

2. The Pure Question of Law Exception Applies.

The California Supreme Court has held that "[p]ure questions of law need not be exhausted administratively, particularly when the agency lacks authority to grant the relief sought." Coachella Valley Mosquito & Vector Control Dist. v. California Public Employment Relations Bd. (2005) 35 Cal.4th 1072, 1080. The issues presented in this Petition are textbook pure legal questions:

(a) Does Penal Code section 3008(d)(2) authorize categorical, time-based bars to discharge eligibility?

(b) Does CDCR possess statutory authority to prohibit early program completion?

(c) Is Policy 19-03 ultra vires to the statutes it purports to implement?

These are questions of statutory interpretation and agency authority. They do not require factual fact-finding or the exercise of administrative expertise. They are matters for this Court.

3. The Administrative Remedy Is Inadequate.

The California Supreme Court has also held that "[o]ne need not exhaust inadequate remedies in order to challenge their sufficiency." Horn v. County of Ventura (1979) 24 Cal.3d 605, 611. The CDCR Form 602 grievance process cannot invalidate a regulation, declare a policy ultra vires, or compel the Department to disregard agency-wide directives. Only a court of law possesses the authority to do so. The administrative process is therefore not merely inadequate—it is structurally incapable of providing the relief sought here.

B. CDCR's Categorical Time-Bar Violates Penal Code § 3008(d)(2)

The Department's primary justification for denying discharge—the "10-year/6.5-year" rule embedded in Policy 19-03—is a categorical policy that finds no support in the governing statute. Penal Code section 3008(d)(2) establishes the framework for sex offender management programs on parole. Its text is unambiguous regarding the permissible range of treatment duration:

> *"The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court."* Pen. Code § 3008(d)(2).

1. The Canon Against Surplusage and the Meaning of "Up To."

A fundamental canon of statutory construction requires that "every word in a statute must be given effect." People v. Rizo (2000) 22 Cal.4th 681, 685. The Legislature's inclusion of the phrase "up to" in section 3008(d)(2) is not ornamental. It creates a discretionary range—a range that, by its plain meaning, explicitly contemplates that for some parolees, the appropriate duration of the treatment program will be less than the entire parole period.

If the Legislature had intended to mandate that all sex offenders remain in the program for their full parole term—or for a fixed percentage thereof (e.g., 6.5 years of a 10-year term)—it would have enacted language to that effect. It did not. Instead, it delegated the determination of duration to clinical professionals and the courts. By enforcing Policy 19-03, which imposes a mandatory minimum of 6.5 years for all parolees with 10-year terms regardless of individual progress, the Department renders the words "up to" complete surplusage. This violates the cardinal rule that courts—and agencies—must avoid interpretations that make statutory language meaningless. Lungren v. Deukmejian (1988) 45 Cal.3d 727, 735.

The point may be stated simply. If CDCR's policy is valid—that treatment duration is effectively coterminous with parole until discharge—then the statutory phrase "not less than one year, up to" serves no function whatsoever. A court must presume the Legislature intended that phrase to have meaning. The only logical meaning is that there exists a subset of parolees for whom the appropriate treatment duration is less than the full parole term. Policy 19-03 forecloses even the possibility of that subset existing.

2. In re Gadlin and the Prohibition on Wholesale Exclusions.

The California Supreme Court has repeatedly rebuked CDCR for attempting to curtail statutory parole rights through categorical administrative rules. In In re Gadlin (2020) 10 Cal.5th 915, the Court invalidated CDCR regulations that categorically excluded nonviolent sex offenders from parole consideration under Proposition 57. The Court held that "eligibility must be based on an inmate's current circumstances—not categorical rules applied without individual consideration." Id. at 928. The regulations created, in the Court's words, "wholesale exclusions from a constitutional right. That is impermissible." Id.

Although Gadlin addressed parole consideration for inmates rather than discharge for supervisees, its reasoning applies with equal force here. In both contexts, the Department attempted to use a blanket exclusion—based on penal status—to override a statutory or constitutional directive for flexible, individualized review. The 10-year/6.5-year rule is precisely the type of "wholesale exclusion" condemned in Gadlin. It prejudges every parolee with a 10-year term as ineligible for discharge until a fixed date, regardless of their "current circumstances," their individual progress, or the "good cause" findings required by law.

This principle was recently reaffirmed in In re Leman (2021) 66 Cal.App.5th 200. The court held that CDCR's reliance on a "one-size-fits-all" policy, rather than an "individualized consideration of [the parolee's] current risk to public safety," constitutes an abuse of discretion. Id. at 215. The court emphasized that an agency substituting generalized classifications for statutorily mandated individualized assessment violates its duty to proceed in the manner required by law. The identical flaw infects the denial here: CDCR applied categorical time bars and structural impossibility rules rather than assessing the Petitioner's actual risk, progress, and rehabilitation.

3. In re Taylor and the Requirement for Particularized Circumstances.

Similarly, in In re Taylor (2015) 60 Cal.4th 1019, the Supreme Court struck down blanket residency restrictions imposed on all sex offenders on parole, holding that such restrictions are permissible "only when [they are] based on, and supported by, the particularized circumstances of each individual parolee." Id. at 1037. The Court emphasized that while public safety is a compelling interest, it does not justify arbitrary administrative barriers that bear no rational relationship to an individual's actual risk.

The Petitioner's denial was not based on his particularized circumstances. To the contrary, his circumstances—stable residence, low risk score, five years of supervision without revocation, and active treatment participation—militated in favor of discharge. He was denied solely because of a generalized policy rule applied mechanically to his sentence structure. Under Taylor, this failure to conduct an individualized assessment constitutes an invalid exercise of agency power.

C. CDCR's "Completion Impossible" Policy Violates § 3008(d)(2) and 15 CCR § 3574

The second categorical bar cited in the December 1, 2025 Discharge Review Report—"incomplete sex offender treatment"—is not a reflection of the Petitioner's clinical status alone. It is the product of a structural policy that renders pre-discharge completion impossible by design. This Court need not speculate about the existence of such a policy; it has been established under oath.

1. The Policy Was Established Through Sworn Testimony.

In In re Dwyer (San Mateo Super. Ct. Case No. SC-080355A/HC-3020, Order dated Mar. 20, 2023), the superior court held an evidentiary hearing at which CDCR officials and treatment provider representatives testified. The court found as a matter of fact that CDCR's practice was to require every registrant-parolee to participate in the treatment program for the entire term of parole, "apparently without reference to the individualized performance of each parolee." The court concluded that this practice "vitiates the Legislature's directive" in section 3008(d). The Dwyer record further established that no parolee had ever been allowed to "complete" the sex offender treatment program prior to discharge under CDCR's unwritten rules.

This is not a relic of the past. The December 1, 2025 Report in this case cited "incomplete sex offender treatment" as a basis for denial—while simultaneously applying a framework under which completion before discharge is structurally unattainable. The policy persists. Petitioner's treatment provider, HOPE, was the subject of that very testimony in Dwyer. Its "continuous connection" mandate is the direct cause of Petitioner's "incomplete" status cited in the December 2025 Report, proving the policy's active application in his case long after the Dwyer court condemned it.

2. CDCR's Own Regulations Repudiate the Policy.

Effective April 17, 2025, CDCR adopted 15 Cal. Code Regs. § 3574, which states in subsection (d): "Supervised persons may complete a sex offender management program before discharge from parole, as contemplated by PC section 3008(d)." This language is a direct and formal repudiation of the "completion impossible" stance. It is not ambiguous. It is not incidental. It is the regulation's explicit acknowledgment that the law has always permitted—and indeed contemplated—early completion.

The Department cannot have it both ways. It cannot promulgate a regulation in April 2025 explicitly permitting early completion, and then deny a parolee in December 2025 on the ground that completion is impossible. To do so is the definition of arbitrary and capricious agency action. See Yamaha Corp. of America v. State Bd. of Equalization (1998) 19 Cal.4th 1, 7 ("An agency regulation that is inconsistent with the statute under which it is adopted is void."); see also Morris v. Williams (1967) 67 Cal.2d 733, 737 (courts must strike down agency practices contradicting statute).

3. The December 1 Report Violates § 3574's Procedural Requirements.

Section 3574(f) provides that any decision to retain a supervised person in treatment must be "supported by good cause" as defined in Penal Code section 3000, documented in writing on CDCR Form 3043, signed by both the treatment provider and the parole agent, and delivered to the supervised person within 30 days. The Petitioner's Discharge Review Report contains none of these elements. There is no Form 3043. There is no treatment provider signature. There is no articulated "good cause" analysis. There is no delivery. This is not a minor procedural deficiency. The requirement for a treatment provider's signature ensures that clinical experts—not custodial agents alone—participate in the duration decision, exactly as section 3008(d)(2) requires. By bypassing this check, the Department removed the "certified sex offender management professional" from the decision-making loop entirely.

These structural and policy barriers are compounded by failures in treatment delivery attributable to CDCR and its contracted providers. The Petitioner's experience of approximately seven clinician changes over five years—coupled with lost homework—demonstrates a profound lack of continuity that the California Sex Offender Management Board (CASOMB) guidelines seek to prevent. CASOMB's Guidelines for Transfer of Clients between Programs (July 2024) recognize that provider changes "may interfere with the consistency of an individual's containment team," disrupting treatment plans, prior successes, and motivation, and mandate steps like record transfers, discharge summaries, and collaborative decisions with parole to mitigate harm. CASOMB's Treatment Completion Guidelines (April 2018) emphasize that treatment duration must be determined through individualized assessment by the containment team, focusing on progress in treatment modules, risk reduction, and dynamic factors rather than arbitrary time minimums. These standards contemplate flexible duration and support early completion for offenders demonstrating sufficient rehabilitation—precisely the individualized framework § 3008(d)(2) mandates and § 3574 implements. CDCR's Policy 19-03 ignores this expert guidance, and the fragmented care prevented the consistent, evidence-based input from a certified professional required by § 3008(d)(2) and § 3574(f), further tainting the denial.

Where treatment records are fragmented, reset, or lost due to repeated provider turnover, CDCR cannot establish by substantial evidence that continued treatment is clinically necessary, rather than administratively prolonged. The Petitioner's advancement to Core Phase, Block 1, Module 4 of 7—despite these systemic disruptions—demonstrates good-faith participation and progress. CDCR's reliance on "incomplete treatment" punishes the Petitioner for deficiencies caused by the Department's own failures in record-keeping and provider continuity, rendering the denial arbitrary and unsupported by substantial evidence.

D. Policy 19-03 Is an Invalid "Underground Regulation"

Independent of its conflict with the governing statutes, Policy 19-03 is void as an "underground regulation" that was never adopted through the procedures required by the California Administrative Procedure Act.

The APA defines a "regulation" as every rule, standard, or order of general application adopted by a state agency to implement, interpret, or make specific the law it enforces. Gov. Code § 11342.600. Regulations must be adopted through a formal notice-and-comment process to ensure public transparency and legal vetting. A rule that meets the definition of a regulation but has not been formally adopted is an "underground regulation"—and it is void. Tidewater Marine Western, Inc. v. Bradshaw (1996) 14 Cal.4th 557, 571.

The California Supreme Court in Tidewater established a two-part test to identify underground regulations: (1) Does the rule apply generally, rather than to a specific case? (2) Does the rule implement, interpret, or make specific the law enforced by the agency? Policy 19-03 satisfies both prongs. First, it applies generally to all parolees with a 10-year term—it is not an adjudication of a specific case but a blanket standard. Second, it interprets and "makes specific" the broad "up to" language of Penal Code section 3008(d) by imposing a concrete minimum duration (6.5 years) that the statute itself does not contain.

Because Policy 19-03 was never adopted through the APA process—unlike the new Section 3574, which was—it is an illegal underground regulation. The Department cannot rely on an invalid rule to justify the deprivation of the Petitioner's statutory right to an individualized assessment. As the Court in Tidewater observed, an agency does not have the power to "add requirements" to a statute through internal policy manuals. See also California Hotel & Motel Ass'n v. Industrial Welfare Comm'n (1979) 25 Cal.3d 200, 212.

E. CDCR Violated Its Ministerial Duty to Apply the Correct Legal Standard

The foregoing arguments converge on a single, controlling principle: the duty to apply the correct legal standard is ministerial, even where the ultimate decision involves discretion. AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health (2011) 197 Cal.App.4th 693, 700. When an agency is required by statute to apply specific criteria in reaching a decision, the agency's obligation to use those criteria—rather than substitute its own policy-based criteria—is a ministerial duty enforceable by mandate. Id.

As the California Supreme Court held in People v. Superior Court (Laff) (2001) 25 Cal.4th 703, 734, "the determination of whether to [grant a benefit] is discretionary, but the duty to apply the correct criteria in making that determination is ministerial." Here, the correct criteria are the individualized factors set forth in § 3008(d)(2) and § 3574—clinical progress, risk assessment, containment team input, and good cause findings. The unauthorized criteria are Policy 19-03's categorical time bars and the structurally impossible completion standard. CDCR's failure to apply the correct, statutorily mandated criteria is a ministerial duty violation remediable by mandate.

This principle has direct application here. CDCR possessed discretion to weigh the Petitioner's risk level, his compliance history, his treatment progress, and the other individualized factors contemplated by Penal Code section 3008(d)(2) and 15 CCR § 3574. CDCR did not possess discretion to substitute categorical time-based bars for that individualized inquiry. The duty to use the statutory factors—rather than Policy 19-03's mechanical formula—is ministerial. It failed to perform that duty. By applying a rigid time-bar and an impossible completion standard, the Department abdicated that discretion entirely. A ministerial duty to exercise discretion cannot be satisfied by a refusal to exercise it. See Rodriguez v. Solis (1991) 1 Cal.App.4th 495, 502.

The Court of Appeal in Pomona Police Officers' Ass'n v. City of Pomona (1997) 58 Cal.App.4th 578, 583–84, confirmed that mandate lies to correct an agency that "has not proceeded in the manner required by law." Here, the manner required by law was an individualized assessment conducted by—or at least in consultation with—a certified sex offender management professional, documented through the procedures of 15 CCR § 3574. The December 1, 2025 Report reflects none of that. It reflects a mechanical application of a categorical rule. That is not a failure of discretion; it is a failure to exercise discretion at all—and mandate is the appropriate remedy. See also Rodriguez v. Solis (1991) 1 Cal.App.4th 495, 502 (mandate lies when agency substitutes unauthorized criteria for statutory requirements).

F. The December 1, 2025 Decision Is "Tainted" and Must Be Vacated

The Department may attempt to argue that the denial should stand because the Petitioner had technical parole violations—GPS charging issues and a treatment attendance issue. This argument fails under the well-established "taint" doctrine of California administrative law.

1. A Decision Based Partly on Improper Grounds Must Be Set Aside.

The Court of Appeal held in California Highway Patrol v. Superior Court (2008) 158 Cal.App.4th 726, 735, that when an administrative decision rests on multiple grounds and at least one is improper, the decision must be set aside. The reasoning is that a reviewing court cannot determine with certainty that the agency would have reached the same result absent the improper consideration. The appropriate remedy is vacatur and remand—not judicial speculation about what the agency might have done.

Here, the December 1, 2025 denial rests on multiple grounds. Two of them are demonstrably improper: the 6.5-year time bar (ultra vires under Tidewater and inconsistent with section 3008(d)(2)) and the incomplete treatment standard (structurally impossible under the pre-2025 policy, and formally repudiated by § 3574(d)). The remaining grounds—technical violations and unemployment—may or may not, standing alone, constitute sufficient basis for denial under a properly conducted individualized review. But because the decision is inextricably tainted by the improper criteria, it cannot be upheld.

2. The Improper Criteria Were Dispositive.

This is not a close case on the application of the taint doctrine. The Report states plainly: "Newanforbi is not eligible for EDC at this time due to having a 10-year parole term." The Report's use of the term "not eligible" is dispositive. It reveals a threshold eligibility determination made before any holistic review of Petitioner's individual circumstances. The Report's use of "not eligible" language confirms the categorical bar was dispositive, not supplementary—precluding any meaningful individualized review. Under the taint doctrine, this foundational reliance on unlawful criteria requires vacatur without speculation. California Highway Patrol v. Superior Court (2008) 158 Cal.App.4th 726, 735. The subsequent notes on technical violations are post-hoc justifications for a decision already reached on unlawful grounds. This sequence confirms that the taint is not incidental; it is foundational. The Policy 19-03 bar was not a supplementary consideration but the determination that foreclosed any individualized analysis from taking place.

Because the "incomplete treatment" finding rests on records compromised by CDCR's own failures in continuity and documentation—specifically, seven clinician changes over five years and the admitted loss of completed homework—that ground is independently invalid and further taints the discharge denial. An agency cannot penalize an individual for deficiencies caused by the agency's own systemic failures. The fragmented treatment records prevent any reliable determination of the Petitioner's actual clinical status, rendering the "incomplete treatment"

rationale arbitrary and unsupported. This independent taint reinforces the need for vacatur and remand under proper procedures.

Moreover, the technical violations themselves were treated by CDCR as insufficiently serious to warrant revocation. If the Department did not consider the violations grave enough to revoke parole, it is difficult to conceive how they would, standing alone, justify denial of discharge eligibility—particularly for a parolee with a low risk score and five years of stable supervision.

3. The Remedy Is Vacatur and Remand.

Under the taint doctrine, the Court should not attempt to "save" the denial by speculating that the Department would have reached the same result using only proper criteria. See JKH Enterprises, Inc. v. Dept. of Industrial Relations (2006) 142 Cal.App.4th 1046, 1058. The appropriate remedy is vacatur of the December 1, 2025 Discharge Review Report and remand for a new determination —one conducted under the individualized criteria of Penal Code section 3008(d)(2) and the procedural requirements of 15 CCR § 3574. See also Topanga Ass'n for a Scenic Community v. County of Los Angeles (1974) 11 Cal.3d 506, 514–15 (agency must articulate findings supporting decision under proper legal standard; decision lacking proper legal basis must be set aside).

G. Petitioner Has a Clear Beneficial Right to a Lawful Determination

The second element of a mandate action—a clear, present, and beneficial right in the petitioner—is readily established. Penal Code section 3008(d)(2) creates a right to have the duration of the sex offender management program determined through an individualized assessment by a certified professional. 15 CCR § 3574 creates correlative procedural rights: to a Containment Team Meeting, to written "good cause" for retention on Form 3043, and to 30-day notice. The December 1, 2025 Report provided none of these.

Moreover, the Petitioner has a liberty interest in freedom from unlawful prolongation of parole supervision. While there is no constitutional right to parole discharge per se, once a state establishes a statutory scheme for early discharge—as California has done through Penal Code sections 3000, 3001, and 3008—it creates a liberty interest that is protected by the Due Process Clause. Greenholtz v. Inmates of Nebraska Penal and Correctional Complex (1979) 442 U.S. 1; In re Lawrence (2008) 44 Cal.4th 1181. Ongoing parole supervision subjects the Petitioner to GPS monitoring, residency restrictions, and the constant threat of re-incarceration for technical violations. Prolonging that supervision beyond what the law authorizes—through policies that are nowhere in the statute—is not a neutral administrative act. It is a deprivation of liberty that the law does not sanction.

This Court, in Alliance for Constitutional Sex Offense Laws v. Macomber (Sacramento Super. Ct. Case No. 23STCP02378, Order dated Dec. 13, 2023), overruled CDCR's demurrer to a petition presenting these identical legal theories. In doing so, it necessarily found that a parolee has standing and a beneficial right to challenge categorical discharge policies as ultra vires. That ruling validates both the procedural vehicle and the substantive claims presented here.

V. CONCLUSION AND PRAYER FOR RELIEF

The Department of Corrections and Rehabilitation has engaged in an unlawful substitution of categorical criteria for the individualized assessment required by statute. By applying the "10-year/6.5-year" rule and the "impossible completion" standard, the Department violated the plain text of Penal Code section 3008(d)(2), ignored the mandate of In re Gadlin and In re Taylor against categorical exclusions, and failed to follow its own binding regulations under 15 CCR section 3574.

The Petitioner has met all requirements for the issuance of a writ of mandate. The Department has a ministerial duty to apply the correct statutory criteria. It failed to do so. The Petitioner has a beneficial right to an individualized assessment. He was denied one. The decision is tainted by reliance on improper criteria. It must be vacated.

Accordingly, Petitioner respectfully requests that this Court:

1. **Issue a Peremptory Writ of Mandate** commanding Respondent to vacate and set aside the Discharge Review Report dated December 1, 2025.
2. **Order a New Discharge Review** to be conducted within 30 days of the issuance of the Writ, strictly applying the individualized criteria of Penal Code section 3008(d)(2) and 15 CCR section 3574, and without reference to Policy 19-03 (Amended) or any categorical time-served bar.
3. **Order a Properly Constituted Containment Team Meeting** prior to any new discharge review, as required by 15 CCR § 3574(c), and that the CTM's findings form the basis of the new determination.
4. **Compel Procedural Compliance,** specifically requiring that any decision to retain the Petitioner in treatment be supported by written "good cause" on CDCR Form 3043, signed by a certified treatment provider and parole agent, as required by 15 CCR § 3574(f).
5. **Issue a Declaratory Judgment** finding that CDCR Policy 19-03 (Amended), to the extent it imposes a mandatory minimum time-served requirement for parole discharge, is an invalid "underground regulation" adopted in violation of the Administrative Procedure Act and is ultra vires to Penal Code section 3008(d).
6. **Retain Jurisdiction** over this matter to enforce compliance with the Writ.

Respectfully submitted,

/s/ Brendan Ngehsi Newanforbi
Brendan Ngehsi Newanforbi
Petitioner, In Pro Per
February 9, 2026

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